NEXTREPORTING

SERVICE LEVEN AGREEMENT (SLA)

Version 1.0

1. PURPOSE

This Service Level Agreement ("**SLA**") forms an integral part of the Agreement entered into between the Provider and the Customer for the provision of the ATEBIZ Software-as-a-Service platform.

Its purpose is to define the operational service commitments applicable to the Service, including availability targets, support services, incident management procedures, maintenance activities and service restoration objectives.

This SLA establishes operational targets only. It does not constitute a guarantee that the Service will be uninterrupted or error-free and shall not be interpreted as creating strict liability for every service interruption.

Unless expressly agreed otherwise in an Order Form, this SLA applies to all standard commercial subscriptions.

2. SERVICE AVAILABILITY

The Provider shall use commercially reasonable efforts to ensure the continuous availability of the Service throughout the Subscription Term.

The target Monthly Uptime Percentage shall be **99.9%**, excluding Excluded Downtime as defined in this SLA.

Availability shall be measured on a calendar-month basis.

For the purposes of this SLA, the Service shall be considered available whenever Authorised Users are able to authenticate successfully and access the core functionality of ATEBIZ through the production environment.

Temporary degradation affecting non-essential features shall not, by itself, constitute unavailability.

Likewise, temporary reductions in system performance that do not materially prevent ordinary use of the Service shall not be treated as downtime.

3. EXCLUDED DOWNTIME

Downtime shall not be taken into account when calculating Monthly Uptime where the interruption results from circumstances outside the Provider's reasonable control.

Excluded Downtime includes scheduled maintenance, emergency maintenance required to address security risks, failures of telecommunications providers, failures of cloud infrastructure providers, internet outages, denial-of-service attacks, force majeure events, failures originating from third-party software, Customer infrastructure failures, Customer configuration errors, misuse of the Service or suspension carried out in accordance with the Agreement.

Downtime resulting from beta features, trial modules or experimental functionalities shall likewise be excluded.

4. PLANNED MAINTENANCE

The Provider may perform planned maintenance whenever reasonably necessary to preserve the security, stability, availability or performance of the Service.

Whenever reasonably practicable, planned maintenance shall be scheduled outside normal European business hours.

The Provider shall use reasonable efforts to provide prior notice of significant planned maintenance likely to affect Service availability.

Routine maintenance activities producing no material interruption of the Service may be performed without prior notice.

The Customer acknowledges that preventive maintenance forms an essential component of a secure cloud environment.

5. EMERGENCY MAINTENANCE

Where immediate intervention is reasonably necessary to prevent security incidents, preserve the integrity of the Service, mitigate cybersecurity threats or protect Customer Data, the Provider may perform emergency maintenance without prior notice.

The Provider shall endeavour to minimise disruption and restore the Service as quickly as reasonably practicable.

Emergency maintenance shall not constitute a breach of the Agreement.

6. SERVICE DESK

Technical support shall be available through the support channels designated by the Provider.

Support requests may be submitted electronically at any time.

Standard support shall be provided during the Provider's published business hours. Enterprise Support, Premium Support or enhanced response commitments shall apply only where expressly purchased under the applicable Order Form.

The Customer shall designate appropriate technical contacts authorised to communicate with the Provider regarding operational matters.

The Provider may require verification of identity before disclosing information concerning the Customer's environment.

7. INCIDENT MANAGEMENT

The Provider shall maintain an incident management process designed to ensure the prompt recording, classification, investigation and resolution of operational incidents.

Each reported incident shall be assigned an appropriate priority according to its operational impact and urgency.

Incident priorities may be revised during the investigation where additional information becomes available.

The Provider shall use commercially reasonable efforts to restore the affected functionality within the shortest practicable timeframe.

Response times represent the time within which the Provider will commence investigation of an incident.

Response times do not constitute guaranteed resolution times.

8. INCIDENT CLASSIFICATION

Incidents shall be classified according to their operational impact.

A **Priority 1 Incident** exists where the production environment is unavailable for substantially all users and no reasonable workaround exists.

A **Priority 2 Incident** exists where a major business function is unavailable or severely impaired, affecting a significant number of users.

A **Priority 3 Incident** exists where important functionality is degraded but reasonable workarounds remain available.

A **Priority 4 Incident** exists where the incident has only a minor operational impact or concerns isolated defects, cosmetic issues or general assistance requests.

The Provider reserves the right to reclassify incidents following technical assessment.

9. RESPONSE TARGETS

Following validation of an incident, the Provider shall use commercially reasonable efforts to commence investigation within the following target periods.

Priority 1 incidents shall receive an initial response within one (1) hour.
Priority 2 incidents shall receive an initial response within four (4) business hours.
Priority 3 incidents shall receive an initial response within one (1) Business Day.
Priority 4 incidents shall receive an initial response within three (3) Business Days.

These response targets apply only where sufficient diagnostic information has been provided by the Customer.

10. RESTORATION OBJECTIVES

The Provider shall use commercially reasonable efforts to restore affected Services as soon as reasonably practicable.

Because software incidents vary significantly in complexity, no guaranteed restoration times are provided.

Where immediate correction is not technically feasible, the Provider may implement temporary workarounds while preparing a permanent solution.

Permanent corrections may be delivered through future software releases where appropriate.

11. CUSTOMER RESPONSIBILITIES

The Provider's obligations under this SLA are conditional upon the Customer providing reasonable cooperation.

The Customer shall promptly report incidents using the designated support channels and shall provide all information reasonably necessary to reproduce and investigate the reported issue.

The Customer shall maintain compatible internet connectivity, supported browsers, appropriate internal security measures and qualified personnel responsible for interacting with the Provider.

Failure to provide reasonable cooperation may affect the Provider's ability to meet the response targets established in this SLA.

12. BACKUPS

The Provider shall maintain backup procedures designed to protect production data against accidental loss.

Backups shall be performed in accordance with the Provider's internal operational policies.

Backup retention periods may vary depending upon operational requirements and disaster recovery procedures.

Backups are maintained for business continuity purposes and shall not be regarded as an archival service for the Customer.

The Customer remains responsible for exporting and retaining any information it wishes to preserve independently of the Service.

13. BUSINESS CONTINUITY

The Provider shall maintain documented business continuity and disaster recovery procedures appropriate to the nature of the Service.

Such procedures shall be periodically reviewed and tested.

The objective of these procedures is to minimise operational disruption following significant service failures.

The existence of business continuity procedures shall not constitute a contractual guarantee that any particular recovery timeframe will always be achieved.

14. SECURITY INCIDENTS

Security incidents shall be managed in accordance with the Provider's Incident Response Plan.

Where a confirmed Personal Data Breach occurs, notifications shall be managed in accordance with the Data Processing Agreement.

Operational security incidents not affecting Personal Data may be managed separately where appropriate.

The Provider shall maintain procedures for containment, investigation, eradication, recovery and post-incident review.

15. SERVICE CREDITS

Except where expressly agreed in an Enterprise Order Form, service credits shall not apply automatically.

Where the Parties have agreed service credits, such credits shall constitute the Customer's sole financial remedy for any failure to achieve the availability targets established under this SLA.

Service credits shall never exceed the Subscription Fees attributable to the affected month.

Service credits shall not apply where downtime constitutes Excluded Downtime under this SLA.

16. CONTINUOUS IMPROVEMENT

The Provider continuously reviews operational performance, cybersecurity risks, customer feedback and technological developments in order to improve the quality, resilience and efficiency of the Service.

Nothing contained in this SLA shall prevent the Provider from modifying its operational procedures where such modifications improve the Service or respond to evolving technological, regulatory or security requirements.

17. GOVERNING LAW

This Service Level Agreement forms an integral part of the Agreement and shall be governed by the governing law and dispute resolution provisions contained therein.